

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #03	CCRB Case #: 201906229	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/17/2019 3:05 AM	Location of Incident: Westbound Belt Parkway by the 134th Street exit	18 Mo. SOL 9/3/2021	Precinct: 106		
Date/Time CV Reported Wed, 07/17/2019 7:38 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/17/2019 7:38 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Hart	26047	941142	HWY 03

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Hart	Abuse: Police Officer Matthew Hart stopped the vehicle in which § 87(2)(b) was an occupant.	A . Complainant Uncooperative
B . POM Matthew Hart	Abuse: Police Officer Matthew Hart detained § 87(2)(b)	B . Complainant Uncooperative

Case Summary

On July 17, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone. On July 19, 2019, this complaint was assigned to the undersigned. There is no video footage of this incident.

Between July 24, 2019 and August 6, 2019, the CCRB attempted to contact § 87(2)(b) by telephone on four occasions and left a voicemail at each attempt. On August 6, 2019, § 87(2)(b) contacted the CCRB by telephone and left a voicemail. On August 6, 2019, the CCRB contacted § 87(2)(b) by telephone. § 87(2)(b) confirmed his contact information and stated that his schedule is unpredictable because he works for the MTA. § 87(2)(b) asked to be contacted at the beginning of the following week to schedule an appointment to provide an in-person statement at the CCRB. On August 12, 2019, the CCRB attempted to contact § 87(2)(b) by telephone for the fifth time and left a voicemail.

On July 24, 2019, the CCRB emailed § 87(2)(b). On July 24, 2019, § 87(2)(b) responded to the CCRB's email stating that he received the email. On August 12, 2019, the CCRB emailed § 87(2)(b) a second time. On August 14, 2019, § 87(2)(b) responded via email and stated that he could meet on August 22, 2019, at 2:00 or another time with prior notice. The CCRB responded that Thursday would not work due to a scheduling conflict but any other day that week was available. § 87(2)(b) responded that he would be able to schedule an interview for the following week. The CCRB responded and asked for specific availability. § 87(2)(b) stated that he would come to the CCRB on August 29, 2019, between 2:00 and 4:00 PM. The CCRB responded and asked if 2:00 PM would work. § 87(2)(b) did not respond to the email and did not appear at the CCRB on August 29, 2019.

Between July 24, 2019 and August 12, 2019, the CCRB mailed § 87(2)(b) two unreturned letters.

On September 3, 2019, searches of the New York City Department of Corrections inmate lookup website and the New York State Department of Corrections inmate lookup website revealed that § 87(2)(b) is not currently incarcerated.

§ 87(2)(g)

Therefore, it is recommended that this case be closed as **complainant uncooperative**.

Squad No.: 3

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date